

Managed IT Services Agreement

Recurring managed services subscription — scope, service tiers, and terms

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Effective Date: _____

Parties and Effective Date

This Managed IT Services Agreement ("Agreement") is entered into as of the Effective Date by and between BVTech LLC, a Texas limited liability company ("Provider" or "BVTech"), with its principal office at 1902 Kirby Rd, El Campo, TX 77437, and the client identified on the signature page ("Client"). Provider and Client are each a "party" and together the "parties."

Client Legal Name: _____

Client Address: _____

Client Primary Contact / Email: _____

Managed Services Scope

During the term, Provider will deliver the ongoing services selected below for the covered users, endpoints, servers, and network devices listed in Exhibit A (the "Covered Environment"). Devices or users added to the Covered Environment are billed at the per-unit rates below beginning the month added.

Included Service	Description	Included?
Remote Monitoring & Management (RMM)	24x7 automated monitoring, alerting, patching for covered endpoints/servers	Yes / No
Help Desk Support	Remote end-user support during Business Hours (M–F 8:00 AM–6:00 PM CT, excluding federal holidays)	Yes / No
Endpoint Security (EDR/AV)	Managed endpoint protection with response to detections	Yes / No
Email Security & M365 Administration	Tenant administration, spam/phish filtering, security baseline	Yes / No
Managed Backup	Backup configuration, monitoring, and periodic restore testing (see Backup SLA)	Yes / No
Security Awareness Training	Ongoing user training and phishing simulation	Yes / No
vCIO / Strategy Reviews	Quarterly business review, technology roadmap, budget planning	Yes / No
On-Site Support	On-site visits: ____ included per month; additional at hourly rate	Yes / No

Out-of-Scope Services

Unless expressly included in Exhibit A or a separate SOW, the following are out of scope and billable at Provider's then-current rates with Client approval: projects and installations (new servers, migrations, office moves, cabling); support for hardware/software past vendor end-of-life; recovery from incidents caused by

Client's refusal of recommended remediation; support for personal (non-business) devices; software development; third-party vendor product costs and licensing; and after-hours support beyond included allotments.

Fees

Line Item	Unit	Qty	Unit Price	Monthly Total
Per-user managed services	user		\$	\$
Per-server management	server		\$	\$
Per-network-device management	device		\$	\$
Backup storage / licensing pass-through	GB or seat		\$	\$
Monthly Recurring Total				\$

Provider may adjust recurring fees once per contract year upon sixty (60) days' written notice, capped at the greater of 5% or CPI-U. Third-party licensing pass-through costs may change with vendor pricing upon notice.

Term; Auto-Renewal

Initial term: _____ months from the Effective Date, then renewing automatically for successive twelve (12) month terms unless either party gives written non-renewal notice at least sixty (60) days before the end of the then-current term. Early termination by Client for convenience during a term requires payment of fifty percent (50%) of the remaining monthly fees for that term, as reasonable liquidated damages reflecting Provider's committed licensing and staffing costs.

Service Levels

Response and resolution targets are set out in the Service Level Agreement (BVT-LGL-003), incorporated by reference. Service credits stated there are Client's sole and exclusive remedy for missed service levels.

Client Obligations Specific to Managed Services

- Do not remove, disable, or tamper with Provider's monitoring, security, or backup agents.
- Maintain administrative access for Provider on covered systems for the duration of the term.
- Approve or reject recommended critical security remediations within ten (10) business days; Provider is not responsible for incidents traceable to declined recommendations documented in writing.
- Notify Provider before making material environment changes (new servers, ISPs, line-of-business applications).

Warranties; Disclaimers; Limitation of Liability

Limited Warranty

Provider warrants that Services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards. Client's exclusive remedy for breach of this warranty is re-performance of the deficient Services, or if re-performance is not commercially practicable, a refund of fees paid for the deficient

Services.

Disclaimer

EXCEPT AS EXPRESSLY STATED HEREIN, THE SERVICES ARE PROVIDED "AS IS" AND PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. PROVIDER DOES NOT WARRANT THAT SERVICES WILL BE UNINTERRUPTED OR ERROR-FREE, OR THAT ALL SECURITY THREATS WILL BE DETECTED OR PREVENTED. NO MANAGED SECURITY SERVICE CAN GUARANTEE PREVENTION OF ALL CYBER INCIDENTS.

Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY TEXAS LAW, NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, OR FOR LOST PROFITS, LOST DATA (EXCEPT TO THE EXTENT CAUSED BY PROVIDER'S FAILURE TO PERFORM CONTRACTED BACKUP SERVICES), OR BUSINESS INTERRUPTION, EVEN IF ADVISED OF THE POSSIBILITY. EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID OR PAYABLE BY CLIENT IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM. THESE LIMITS DO NOT APPLY TO: (a) A PARTY'S INDEMNIFICATION OBLIGATIONS; (b) BREACH OF CONFIDENTIALITY; (c) GROSS NEGLIGENCE, WILLFUL MISCONDUCT, OR FRAUD; OR (d) CLIENT'S PAYMENT OBLIGATIONS.

Mutual Indemnification

Each party shall defend, indemnify, and hold harmless the other from third-party claims arising from (i) its gross negligence or willful misconduct, (ii) its violation of applicable law, or (iii) bodily injury or tangible property damage caused by its personnel. The indemnified party shall give prompt notice and reasonable cooperation; the indemnifying party controls the defense and settlement (no settlement imposing obligations on the indemnified party without consent).

Insurance

Provider shall maintain during the term: commercial general liability of at least \$1,000,000 per occurrence; professional liability / technology errors & omissions of at least \$1,000,000; and cyber liability coverage. Certificates of insurance are available upon written request.

General Provisions

Governing Law and Venue

This Agreement shall be governed by and construed in accordance with the laws of the State of Texas, without regard to its conflict of laws principles. Exclusive venue for any dispute arising out of or relating to this Agreement shall lie in the state or federal courts located in Wharton County or Bexar County, Texas, and each party consents to the personal jurisdiction of such courts.

Dispute Resolution

Before initiating litigation, the parties shall first attempt in good faith to resolve any dispute through direct negotiation between authorized representatives for a period of thirty (30) days. If unresolved, the parties agree to non-binding mediation in Texas with a mutually agreed mediator, with costs shared equally, prior to filing suit. Nothing in this section prevents either party from seeking injunctive relief to protect confidential information or intellectual property.

Attorneys' Fees

In any action to enforce this Agreement, the prevailing party shall be entitled to recover its reasonable attorneys' fees and costs as permitted under Chapter 38 of the Texas Civil Practice and Remedies Code.

Force Majeure

Neither party shall be liable for delay or failure to perform (other than payment obligations) due to causes beyond its reasonable control, including acts of God, natural disasters, utility or internet backbone failures, cyber-attacks by third parties despite commercially reasonable safeguards, epidemics, government action, or labor disputes, provided the affected party gives prompt notice and uses reasonable efforts to mitigate.

Assignment

Neither party may assign this Agreement without the prior written consent of the other, not to be unreasonably withheld, except to a successor in interest by merger, acquisition, or sale of substantially all assets, upon written notice.

Notices

Notices must be in writing and are deemed given when delivered personally, by certified mail (return receipt requested), by nationally recognized courier, or by email with confirmed receipt, to the addresses stated on the signature page or as updated in writing.

Severability; Waiver; Entire Agreement

If any provision is held unenforceable, it shall be modified to the minimum extent necessary and the remainder shall continue in full force. No waiver of any breach is a waiver of any other breach. This Agreement, together with its exhibits, schedules, SOWs, and addenda, constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions. Amendments must be in a writing signed by both parties. This Agreement may be executed in counterparts, and electronic signatures (including via a reputable e-signature platform) are valid and binding under the Texas Uniform Electronic Transactions Act (Tex. Bus. & Com. Code Ch. 322).

Independent Contractors

The parties are independent contractors. Nothing herein creates a partnership, joint venture, agency, or employment relationship.

IN WITNESS WHEREOF, the parties have executed this document as of the Effective Date.

BVTech LLC

Client

Signature: _____

Signature: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____